

**CHAPTER lxxiv.**

An Act for incorporating and conferring powers on the A.D. 1914.
Chelmsford Gas Company and for other purposes.

[31st July 1914.]

WHEREAS in the year one thousand eight hundred and nineteen certain persons formed themselves into a gas company under the name of "The Chelmsford Gas Light and Coke Company" (hereinafter referred to as "the old company") for the purpose of lighting the town of Chelmsford and hamlet of Moulsham and parts adjacent thereto with inflammable air or gas :

And whereas by the Chelmsford Gas Order 1874 confirmed 37 & 38 Vict.
by the Gas and Water Orders Confirmation Act 1874 (herein- c. lxxxvii.
after called "the Order of 1874") the old company were empowered to maintain and continue and from time to time alter and enlarge gasworks and works connected therewith upon the lands described in the schedule to the Order of 1874 and to supply gas within the town and parish of Chelmsford and the several parishes of Springfield Broomfield and Great Baddow in the county of Essex and to raise share capital not exceeding thirty-two thousand three hundred and twenty-five pounds :

And whereas by the Chelmsford Gas Order 1885 confirmed 48 & 49 Vict.
by the Gas and Water Orders Confirmation (No. 2) Act 1885 c. lxxiv.
(hereinafter called "the Order of 1885") the old company were empowered to construct additional gasworks upon the land described in the schedule to the Order of 1885 and were authorised to raise further capital not exceeding ten thousand pounds :

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And whereas the share capital of the old company authorised by the Order of 1874 and the Order of 1885 at present consists of—

£22,325 divided into 893 fully paid up shares of twenty-five pounds each entitled to a maximum dividend of ten pounds per centum per annum; and

£20,000 divided into 800 fully paid up shares of twenty-five pounds each entitled to a maximum dividend of seven pounds per centum per annum:

And whereas the old company were authorised by the Order of 1885 to borrow on mortgage any sums not exceeding in the whole ten thousand five hundred pounds and have borrowed that sum by the creation and issue of mortgage bonds entitled to interest at the rate of four pounds per centum per annum:

And whereas the demand for gas in the district supplied by the old company has increased and is increasing and other parishes and places adjacent thereto are wholly without a supply of gas:

And whereas it is expedient that the old company be dissolved and re-incorporated with the powers hereinafter conferred and that the Company so re-incorporated be authorised to supply gas within the extended limits of supply by this Act authorised and to maintain continue extend and improve the existing gasworks of the old company and that additional capital be provided for those purposes and for the other purposes of this Act:

And whereas the objects aforesaid cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PRELIMINARY.

Short title.

1. This Act may be cited as the Chelmsford Gas Act 1914.

Incorporation of general Acts.

2. The following Acts and parts of Acts are (subject to the provisions of and so far as applicable to the purposes of

this Act) hereby incorporated with and form part of this Act A.D. 1914.
(namely) :—

The Companies Clauses Consolidation Act 1845 (except the provisions relating to the conversion of borrowed money into capital) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts ;

The Lands Clauses Acts (except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement) ; and

The Gasworks Clauses Act 1847 as amended by the Gasworks Clauses Act 1871 Provided that section 13 of the former Act shall be read as if the words “ or any premises ” were inserted after the words “ private building ” and as if the words “ Provided also that every such contract “ entered into by the Company shall be alike in terms “ and amount under like circumstances to all consumers ” were added at the end of that section.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act— Interpre-
tation.

The expression “ the Company ” means the Company incorporated by this Act ;

The expressions “ the gasworks ” and “ the undertaking ” respectively mean and include the gasworks and works connected therewith by this Act vested in or authorised to be continued and maintained by the Company and any improvement and extension thereof which they may make or construct under the powers of this Act and the lands buildings estate right title property and privileges and effects and the undertaking of the Company and every part thereof respectively.

RE-INCORPORATION.

4. As from the passing of this Act the old company shall be dissolved and the several persons who immediately before the passing of this Act were members of that company and all other persons who have already subscribed to or who shall hereafter become proprietors in the undertaking and their executors Re-incor-
poration of
Company.

A.D. 1914. administrators successors and assigns respectively shall be and are hereby united into a Company for the purposes hereinafter mentioned and shall be and are hereby re-incorporated by the name of "The Chelmsford Gas Company" and by that name shall be a body corporate with perpetual succession and a common seal and with power to purchase take hold and dispose of lands and other property for the purposes of this Act and of the undertaking.

General
purposes of
Company.

5. The Company shall be established for the purpose of manufacturing storing and supplying gas for lighting heating motive power and other purposes within the limits of supply as defined by this Act and may purchase convert manufacture and sell all residual products resulting from the manufacture of gas and generally may carry on the business usually carried on by a gas company.

Present pro-
perty of old
company
vested in
Company.

6. Subject to the provisions of this Act all the lands gas-works erections buildings rights and easements which immediately before the passing of this Act were vested in the old company or any person in trust for them or to which the old company were in any wise entitled and all mains and pipes plant apparatus stock effects matters and things which have been by them purchased provided laid down erected or placed in any place or house within the limits of supply or which immediately before the passing of this Act were the property of the old company and all moneys securities credits effects and other property whatsoever which immediately before the passing of this Act belonged to the old company or to any trustee on their behalf and the benefit of all contracts and engagements entered into by or on behalf of the old company and immediately before the passing of this Act in force shall be and the same are hereby transferred to and vested in the Company to the same extent and for the same estate and interest as the same were previously to the passing of this Act vested in the old company or any trustee on their behalf and may according to the provisions of this Act be held and enjoyed sued for and recovered maintained altered discontinued removed dealt with and disposed of by the Company as they think fit.

Deed of set-
tlement of
old company
to be void
without pre-
judice to re-

7. Subject to the provisions of this Act the deed of settlement constituting the old company dated the eighth day of November one thousand eight hundred and nineteen and any deed or deeds amending the same and any regulations made

thereunder shall as to any prospective operation thereof be wholly void and the Company and the shareholders shall be exempted from all the provisions restrictions and requirements of any Act which applied to the old company and the members thereof as such but nothing in this Act contained shall release or discharge any person from any liability or obligation in respect of any breach of the provisions of the said deed of settlement incurred before the passing of this Act but such liability or obligation in respect of any such breach shall continue and save as in this Act otherwise provided may be enforced by or on behalf of the Company as nearly as may be in like manner as the same might have been enforced by or on behalf of the old company if this Act had not been passed.

A.D. 1914.
 —
 remedies for
 antecedent
 breaches
 thereof.

8. Except as is by this Act otherwise expressly provided everything before the passing of this Act done or suffered by or with reference to the old company or the members thereof as such shall be as valid as if the Company had not been incorporated and the deed of settlement had not been avoided by this Act and such incorporation and avoidance and this Act respectively shall accordingly be subject and without prejudice to everything so done or suffered and to all rights liabilities claims and demands both present and future which if the Company were not incorporated and the said deed of settlement were not avoided by this Act and this Act were not passed would be incident to or consequent on any and every thing so done or suffered and with respect to all such rights liabilities claims and demands the Company and its shareholders and property shall to all intents and purposes represent the old company and the members thereof as such and the property of the old company as the case may be and the generality of this enactment shall not be restricted by any of the other sections and provisions of this Act.

Saving of
 existing
 rights and
 liabilities.

9. Except as is by this Act otherwise specially provided all purchases sales conveyances grants assurances deeds contracts bonds and agreements entered into or made before the passing of this Act by to or with the old company or any trustees or persons acting on behalf of the old company or by to or with any other person to whose rights and liabilities they have succeeded and in force at the passing of this Act shall be as binding and of as full force and effect in every respect against or in favour of the Company and may be enforced as fully and effectually as if instead of the old company or any

Contracts
 prior to date
 of transfer to
 be binding.

A.D. 1914. — trustees or persons acting on behalf of the old company the Company had been a party thereto.

Actions &c.
not to abate.

10. Nothing in this Act contained shall release discharge or suspend any action or other proceeding which was pending by or against the old company or any member thereof in relation to the affairs of the old company or to which the old company or any member thereof in relation to such affairs were parties immediately before the passing of this Act but such action or other proceeding may be maintained prosecuted or continued by or in favour of or against the Company (as the case may be) in the same manner and as effectually and advantageously as the same might have been maintained prosecuted or continued by or in favour of or against the old company or any member thereof if this Act had not been passed the Company and the shareholders therein being in reference to the matters aforesaid in all respects substituted for the old company and its members respectively.

Indemnity.

11. Every trustee or other person in whom or in whose name any lands works buildings easements rights property or effects belonging to the old company were vested immediately before the passing of this Act and who (being authorised so to do) before the passing of this Act entered into any bond covenant contract or engagement on behalf of the old company shall be indemnified out of the funds and property of the Company against all liability (including costs charges and expenses) which he may sustain or incur or be put unto by reason of his having entered into such bond covenant contract or engagement.

Company to
satisfy liabi-
lities of old
company.

12. From and after the passing of this Act and except as is by this Act otherwise expressly provided the Company shall in all respects be subject to and shall discharge all obligations and liabilities to which the old company immediately before the passing of this Act were subject and shall indemnify the members directors officers and servants of the old company and their respective representatives from all such obligations and liabilities and from all expenses and costs in that behalf.

Recovery of
gas rents &c.

13. All gas rents and sums of money which immediately before the passing of this Act were due or accruing to the old company shall be payable to and may be collected and

recovered by the Company in like manner as if they had become payable for the like matters supplied or done under this Act. A.D. 1914.

14. All persons who immediately before the passing of this Act owed any money to the old company or to any person on their behalf shall pay the same with all interest (if any) due or accruing upon the same to the Company and all debts and moneys which immediately before the passing of this Act were due or recoverable from the old company or for the payment of which the old company were or but for this Act would be liable shall be paid with all interest (if any) due or accruing upon the same by or be recoverable from the Company. As to payment of debts owing before passing of this Act.

15. Notwithstanding the avoidance of the said deed of settlement all certificates (until cancelled under the powers of this Act) and all sales transfers and dispositions heretofore made or executed under them before the passing of this Act for and with respect to any shares in the old company shall remain in full force and continue and be available in all respects as if the said deed of settlement had not been avoided. Certificates &c. to remain in force.

16. All documents books and writings which if the said dissolution and avoidance had not taken place would have been receivable in evidence shall be admitted as evidence in all courts and elsewhere notwithstanding such dissolution and avoidance. Books &c. continued evidence.

17. All officers and servants of the old company who were in office immediately before the passing of this Act shall hold and enjoy their respective offices and employments together with the salaries and emoluments thereunto attaching until they shall resign the same or be removed therefrom by the Company and shall be subject and liable to the like conditions obligations pains and penalties and to the like powers of removal and to the like rules restrictions and regulations in all respects whatsoever as if they had been appointed under this Act. Officers of old company to continue.

18. The books kept by the old company for entering the names and designations of the members thereof shall continue to be kept for similar purposes by the Company and shall be taken and considered as the register of shareholders required to Present registers of members to be continued.

A.D. 1914. be kept by the Companies Clauses Consolidation Act 1845 until
— a new register is provided by the Company.

CAPITAL.

Capital.

19. The capital of the Company shall be one hundred and twenty-six thousand six hundred and fifty pounds being the aggregate of the following sums:—

- (1) Capital stock to the amount of seventy-two thousand six hundred and fifty pounds being stock created in respect of the existing ordinary capital of the old company which shall be called “ordinary stock”:
- (2) Fifty-four thousand pounds in this Act called “additional capital” which shall be raised in manner hereinafter mentioned.

Allocation of
capital.

20.—(1) As soon as practicable after the passing of this Act there shall be created by virtue of this Act seventy-two thousand six hundred and fifty pounds of ordinary stock and the Company shall issue such stock and the same shall be divided among and vested in the several persons who immediately before the passing of this Act were registered as holders of shares of the old company in the proportion of fifty pounds of such stock for each ordinary share of twenty-five pounds entitled to a dividend of ten pounds per centum per annum held by them respectively and thirty-five pounds of such stock for each ordinary share of twenty-five pounds entitled to a dividend of seven pounds per centum per annum held by them respectively.

(2) All stock so created and vested under or by virtue of this Act shall be deemed to be fully paid up and shall be held in the same rights on the same trusts and subject and liable to the same powers provisions declarations agreements charges liens incumbrances and liabilities (except so far as the same may be altered or varied by this Act) as immediately before the passing of this Act affected the share or shares as the case may be in respect of which the stock so created is so vested and shall be dealt with applied and disposed of accordingly and so as to give effect to and not revoke any agreement deed or other instrument or any testamentary disposition disposing of or affecting the same and every such agreement deed or other instrument or testamentary disposition shall take effect with reference to the whole or a proportionate part as the case may

be of the stock created under or by virtue of this Act substituted therefor and trustees executors or administrators and all other holders in any representative or fiduciary capacity of any share or shares in the old company are hereby expressly authorised and required to accept any stock allocated to and vested in them pursuant to the provisions of this Act and to hold dispose of or otherwise deal with the same as they might have held disposed of or otherwise dealt with the share or shares in the capital of the old company for which such stock created under or by virtue of this Act is substituted and are hereby indemnified in respect of all acts bonâ fide done by them in pursuance of the provisions of this Act.

A.D. 1914.

21.—(1) The Company shall call in the existing certificates of shares in the old company and issue in exchange for those certificates to the respective proprietors thereof free of charge certificates for the stock to which those proprietors are by this Act respectively entitled.

Certificates of shares to be called in and others issued.

(2) No shareholder of the old company shall be entitled to a new certificate until he shall have delivered up to the Company to be cancelled the existing certificate for which such new certificate is to be substituted or shall have proved to the reasonable satisfaction of the directors of the Company the loss or destruction thereof and shall have given such guarantee or indemnity as the Company may require.

(3) Until the issue of such new certificates the existing certificates shall (according to the amounts of ordinary stock to be substituted by virtue of this Act for the shares in the capital of the old company which they respectively represent) have and confer the same rights and advantages as if they were certificates for the respective amounts of ordinary stock created by virtue of this Act.

(4) If any holder of shares in the capital of the old company neglects or omits to send or deliver to the Company his existing certificate or certificates for the period of one year after notice in writing sent by post to the address appearing in the shareholders' address book of the old company the Company may suspend the payment of any dividend declared or made payable upon or in respect of the stock substituted under the provisions of this Act for the shares so held by him until such existing certificate or certificates is or are sent or delivered to the Company or is or are proved to the reasonable satisfaction

A.D. 1914. of the directors of the Company to have been lost or destroyed.

(5) On the issue of any certificate of ordinary stock the certificate or certificates for which it is substituted shall be cancelled.

Transfers
of shares
although by
present
name to be
valid.

22. All transfers or other dispositions of shares in the capital of the old company shall after the substitution thereof of ordinary stock and notwithstanding this Act be valid and have due effect given to them respectively as transfers for the respective amounts of ordinary stock which the shares thereby expressed to be transferred or disposed of represent or which are or may be substituted for the same under the provisions of this Act although the instrument transferring or disposing thereof shall describe the same by the name or denomination which the shares transferred or disposed of had before such substitution and the bequest of or any covenant or provision of any deed or agreement relating to any such shares shall be held to apply to the nominal amount of ordinary stock equal to that for which such shares shall have been substituted under the provisions of this Act.

Stock to be
transferable
in multiples
of one
pound.

23.—(1) All stock of the Company shall be issued and shall be transferable only in amounts of one pound or multiples of one pound but so that the holding of any stockholder shall not be reduced below an amount of ten pounds of stock Notice of the effect of this enactment shall be stated in all certificates of such stock.

(2) Sections 18 to 20 of the Companies Clauses Consolidation Act 1845 shall be deemed and construed to include and apply to all stock created and issued under the provisions of this Act and to the dividends thereon as if such stock and dividends respectively had been expressly named in the said sections.

Power to
raise addi-
tional capi-
tal.

24. The Company may from time to time raise additional capital not exceeding in the whole fifty-four thousand pounds by the creation and issue at their option of further ordinary stock or preference stock or partially by one or other of those modes Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of additional capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of fifty-four thousand pounds Provided also that the Company shall not raise by the issue of preference

stock a greater amount of such additional capital than twenty-seven thousand pounds. A.D. 1914.

25.—(1) All stock created under the powers of the section of this Act of which the marginal note is “Power to raise additional capital” shall be issued in accordance with the provisions of this section. New stock to be sold by auction or tender.

(2) All stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine. Provided as follows:—

(A) Notice of the intended sale shall be given in writing to the town clerk of Chelmsford and to the clerks of the rural district councils of Chelmsford Braintree and Maldon and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply:

(B) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:

(C) No lot offered for sale shall comprise stock of greater nominal value than one hundred pounds:

(D) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum and in the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:

(E) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any stock which has been so offered for sale and is not sold may be offered at the reserve price to the holders of stock of the Company in accordance with the provisions of

A.D. 1914. sections 18 19 and 20 of the Companies Clauses Act 1863 and
 --- to the employees of the Company and to the consumers of gas supplied by the Company in such proportions as the Company may think fit or to one or more of these classes of persons only Provided that in the case of an offer to holders of stock if the aggregate amount of stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any stock which has been offered in accordance with subsection (2) or with subsections (2) and (3) of this section and is not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of Trade stating the total amount of each class of stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for each class of stock.

Privileges
&c. of
holders of
additional
capital.

26. Except as is otherwise by this Act provided all additional capital created by the Company under this Act shall be part of the general capital of the Company and the new stock therein and the holders thereof respectively shall be entitled to the like rights of voting and any other powers rights and privileges in proportion to the amount of their stock and shall be subject to the like provisions and liabilities in all respects as if the stock in the additional capital were part of the stock issued under this Act in substitution for shares in the old company.

BORROWING POWERS.

Power to
borrow in
respect of
ordinary
stock.

27. The Company may at any time after the passing of this Act borrow on mortgage of the undertaking in respect of the ordinary stock which is by this Act substituted for the capital of the old company (including premiums thereon) any sum or sums of money not exceeding in the whole (inclusive of the sum of ten thousand five hundred pounds already

borrowed by the old company) the sum of twenty-four thousand two hundred pounds. A.D. 1914.

28. The Company may subject to the provisions of this Act borrow on mortgage of the undertaking in respect of the additional capital by this Act authorised to be raised any sum or sums not exceeding in the whole one-third part of the amount of such additional capital which at the time of borrowing has been raised under the powers of this Act but no sum shall be borrowed in respect of any capital so raised until the Company have proved to a justice of the peace before he gives his certificate under the fortieth section of the Companies Clauses Consolidation Act 1845 that the whole of the stock at the time issued together with the premium (if any) realised on the sale thereof has been fully paid up.

Power to borrow in respect of additional capital.

29. All mortgages and bonds granted by the old company before and subsisting at the passing of this Act shall during the continuance of such mortgages and bonds and subject to the terms thereof have priority over any mortgages or debenture stock granted or created and issued by virtue of this Act but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company.

Existing mortgages to have priority.

30. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time after the passing of this Act created and issued or granted by the Company under this or any subsequent Act and affecting the undertaking shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

Debenture stock.

31. All moneys raised by the Company on mortgage or by the issue of debenture stock under the provisions of this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by

Priority of mortgages and debenture stock over other debts &c.

A.D. 1914. — the Company after the passing of this Act Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to or vested in the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock.

For appoint-
ment of a
receiver.

32. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than one-tenth of the amount for the time being owing by the Company on mortgage.

DIVIDENDS &c.

Limitation
of profits.

33. Except as is by this Act provided the profits of the Company to be divided among the holders of ordinary stock of the Company in any year shall not exceed the rate (in this Act referred to as “the standard rate of dividend”) of five pounds per centum per annum and the profits of the Company to be divided among the holders of preference stock shall not exceed the rate of five pounds per centum per annum.

Interim
dividend.

34. The directors may in any year without calling a meeting of shareholders for the purpose declare and pay a half-yearly dividend out of the profits of the Company Provided that the amount of any such half-yearly dividend shall not exceed one half of the amount of the authorised rates of dividends respectively.

Closing of
transfer
books pre-
vious to
declaring in-
terim divi-
dend.

35. The directors may close the register of transfers for a period not exceeding fourteen days previous to the declaration of any interim dividend and they may fix a day for closing the same of which seven days’ notice shall be given by advertisement in some newspaper published or circulating in the district within which the Company’s principal place of business is situate and any transfer made during the time when the transfer books are so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend.

SPECIAL PURPOSES AND RESERVE FUNDS.

A.D. 1914.

36.—(1) The directors of the Company may if they think fit in any year appropriate out of the revenue of the Company as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum of the paid-up capital of the Company including premiums to a fund to be called “the special purposes fund.”

Power to
create a
special pur-
poses fund.

(2) The special purposes fund shall be applicable only to meet such charges as an accountant appointed for the purpose by the Board of Trade shall approve as being—

(A) expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented; or

(B) expenses incurred in the replacement or removal of plant or works other than expenses requisite for maintenance and renewal of plant and works.

(3) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one-tenth part of the paid-up capital of the Company including premiums.

(4) The moneys forming the special purposes fund or any portion thereof may be invested in securities in which trustees are authorised by law to invest or may be applied for the general purposes of the Company to which capital is properly applicable or may be used partly in the one way or partly in the other.

(5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

37. If the clear profits of the undertaking of the Company in any year amount to a larger sum than is sufficient to pay the dividend on the preference capital and the dividend at the authorised rate on the ordinary capital of the Company the excess shall be carried to the credit of the divisible profits of the undertaking for the next following year Provided that the sum standing to the credit of such divisible profits shall not at any time exceed the amount required to pay one year's dividends at the authorised rates.

Application
of excess of
profits over
authorised
rates of
dividend.

A.D. 1914.

Power to
create a
reserve fund.

38. Where in any year the dividend which may be paid by the Company on the ordinary stock shall exceed the standard rate by reason of the price charged by the Company for gas in such year being below the standard price then out of the amount of the divisible profits of the Company applicable to the payment of such excess of dividend the Company may in such year set apart such sum as they shall think fit and all sums (if any) so set apart by the Company and any reserve or other fund of the old company existing at the passing of this Act may be invested in Government or other securities and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividend in any year in which the clear profits of the Company shall be insufficient to enable the Company in such year to pay the dividend at the authorised rate on the ordinary stock and save as in this Act provided no sum shall in any year be carried by the Company to any reserve fund.

MEETINGS &C.

First
ordinary
meeting.

39. The first ordinary meeting of the Company shall be held within six months after the passing of this Act and the subsequent ordinary meetings shall be held in the month of February in each year or at such other time as shall be appointed for that purpose by an order of the directors and all meetings whether ordinary or extraordinary shall be held at such place as the directors of the Company shall appoint.

Quorum for
general
meetings.

40. The quorum for all general meetings of the Company shall be seven stockholders present in person or by proxy holding in the aggregate and entitled to vote in respect of not less than one-twentieth of the issued capital of the Company.

Scale of
voting.

41. Every holder of ordinary stock shall be entitled to one vote in respect of every ten pounds of such stock held by him.

Restriction
as to votes in
respect of
preference
stock.

42. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any stock to which a preferential dividend shall be assigned.

DIRECTORS AND AUDITORS.

A.D. 1914.

43. The number of directors shall be seven but the Company may reduce the number provided that the number be not at any time less than four.

Number of directors.

44.—(1) The qualification of a director shall be the possession in his own right of stock of the Company to the nominal amount of not less than four hundred pounds.

Qualification of directors.

(2) If any director shall be made bankrupt or shall become lunatic or of unsound mind or shall neglect to attend the meetings of directors for six months (unless such neglect to attend be occasioned by illness or any other reasonable cause allowed by the directors) then in any of the cases aforesaid the office of such director shall become vacant and thenceforth he shall cease from voting or acting as a director.

(3) The continuing directors may act notwithstanding any vacancy in the number of directors.

45. The quorum of a meeting of directors shall be three.

Quorum of directors.

46. Except in the case of a director retiring by rotation and offering himself or being proposed for re-election no person shall be capable of being elected a director of the Company in place either of a director retiring by rotation or of a director dying refusing to act or ceasing to be qualified or being disqualified to act unless notice in writing that such person intends to offer himself or will be proposed for the office of director shall have been given to the secretary of the Company or left at the office of the Company fourteen days at least before the day of election.

Notice of candidature for office of director.

47. Robert Marshall Straight Arthur Stewart Duffield James Stacey Reeve Reginald Marriage Frederick William Taylor Silas Pledger and Frederick Arthur Wells shall be the first directors of the Company and shall continue in office until the first ordinary meeting held after the passing of this Act At that meeting the stockholders present in person or by proxy may either continue in office the directors appointed by this Act or any of them or may elect a new body of directors or directors to supply the place of those not continued in office the directors appointed by this Act being (if they continue qualified) eligible for election and at the ordinary meeting to be held in every year after the first ordinary meeting the stockholders present in person or by proxy shall (subject to the

First and subsequent directors.

A.D. 1914. — power hereinbefore contained for varying the number of directors) elect persons to supply the places of the directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are duly elected in their stead.

As to appointment of managing director.

48.—(1) The directors of the Company may appoint one or more of their body to be managing director or managing directors of the Company either for a fixed term or without any limitation as to time and may remove or dismiss him or them from office and appoint another or others in his or their place or places.

(2) A managing director shall not while holding that office be subject to retirement by rotation and shall not be taken into account in determining the rotation of retirement of directors but if he ceases to hold the office of director from any other cause he shall ipso facto immediately cease to be a managing director.

(3) The remuneration of a managing director shall from time to time be fixed by the directors and may be by way of salary or commission or participation in profits or by any or all of those modes.

(4) The directors may entrust to and confer upon any managing director such of the powers exerciseable by the directors and subject to such conditions as they may think fit and may from time to time revoke withdraw alter or vary all or some of such powers.

Auditors.

49.—(1) The prescribed number of auditors shall be one unless the number be increased to two by an order of a general meeting and such auditor or auditors shall be a member or members of the Institute of Chartered Accountants or of the Society of Incorporated Accountants and Auditors or an accountant or accountants approved by the Board of Trade.

(2) It shall not be necessary for any auditor to hold any stock in the Company.

SUPPLY OF GAS WORKS &C.

Limits of supply.

50. The limits within which the Company may supply gas under this Act (in this Act called "the limits of supply") shall

be the borough and parish of Chelmsford and the parishes of Springfield Broomfield Great Baddow Great Waltham Little Waltham Great Leighs Little Leighs Fairsted Faulkbourne Terling Hatfield Peverel Boreham Little Baddow Danbury Woodham Ferrers Sandon East Hanningfield West Hanningfield Chignall Writtle Roxwell Widford and Margaretting all in the county of Essex.

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51. If after the expiration of ten years from the passing of this Act the Company have not laid down mains for the supply of gas within any parish in the limits of supply this Act shall not be deemed to prevent any company person or local authority having statutory power so to do from supplying gas in such parish and the Company shall not oppose otherwise than upon details any application by the council of any district in which any such parish or any part thereof may be comprised for an Act of Parliament or Provisional Order for the purpose of providing such a supply and for the repeal of the powers of the Company in that behalf.

Provision in case of mains not being laid down within a limited period.

52. Subject to the provisions of this Act the Company may upon the land described in Part I. of the schedule to this Act maintain and continue the existing gasworks of the old Company and may upon such land and upon the land described in Part II. of the said schedule or any part thereof erect maintain alter improve extend and renew gasworks with all necessary machinery and apparatus and do all such acts as may be proper for making and storing gas and for supplying gas within the limits of supply and may on the said lands convert and manufacture residual products resulting from the manufacture of gas:

Powers as to construction and maintenance of gasworks &c.

Provided that nothing in this section shall authorise the Company to exercise the powers conferred upon them by this section over or upon that part of the roadway (not including the strip of waste land adjoining) along the north-eastern side of the land described in Part II. of the said schedule upon which land and premises belonging to Glover and Hobson Limited abut and the Company shall maintain and keep such part of the said road in good repair but without prejudice to the right of the Company to receive any contributions to the expense of so maintaining and repairing the same from any person liable in that behalf.

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Power to
purchase
lands by
agreement.

53. The Company may for the purposes of the undertaking purchase take and hold (by agreement but not otherwise) in addition to the lands described in the schedule to this Act any lands and hereditaments not exceeding in the whole five acres which the Company may require for the purposes of the gasworks and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands described in the schedule to this Act.

Power to
sell and lease
lands.

54. Subject to the provisions of the Lands Clauses Consolidation Act 1845 the Company may sell and dispose of or may let on lease for such periods as they may think fit any lands for the time being belonging to them and which may not at the time be required for the purposes of the undertaking and may retain and hold sell and dispose of any interest in or reversion to any lands so let and any such sale disposal or lease may be for such consideration and subject to such reservations stipulations restrictions and provisions and generally upon such terms and conditions as the Company may think fit.

Power to
lay pipes &c.
for purposes
ancillary to
business of
Company.

55. The Company may lay down place repair alter remove and renew mains pipes culverts and other apparatus within the limits of supply for the purpose of procuring conducting or disposing of any oil or other material used by them in or resulting from the manufacture of gas or any residual products thereof or for any other purpose connected with their business and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when so laid so far as applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Power to
lay pipes
in private
streets.

56. The Company may on the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply those premises with gas and for that purpose the Gasworks Clauses Act 1847 shall apply as if section 7 of that Act were excepted from incorporation in this Act.

For protec-
tion of cor-
poration of
Chelmsford,

57. For the protection of the mayor aldermen and burgesses of the borough of Chelmsford (in this section referred to as "the corporation") the following provisions shall unless other-

wise agreed in writing between the Company and the corporation have effect within the borough of Chelmsford (that is to say) :—

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- (1) Whenever it shall be found necessary by the Company to break up streets not dedicated to public use in which is laid any sewer drain or tunnel vested in the corporation the like notice and plan as are respectively required by sections 8 and 9 of the Gasworks Clauses Act 1847 to be given or sent to the persons having the control or management of any street shall be given and sent to the corporation and if the corporation notify in writing to the Company that any such sewer drain or tunnel will or may be affected by the operations proposed to be carried out by the Company in such street the provisions of the said Act shall apply for the protection of such sewer drain or tunnel and of the corporation in reference thereto as though the corporation were a person having the control and management of such street within the meaning of the said Act :
- (2) The notice required by section 8 of the Gasworks Clauses Act 1847 with respect to the breaking up of any street bridge sewer drain or tunnel shall be not less than seven clear days instead of not less than three clear days :
- (3) Nothing in this Act shall authorise the Company to interfere with the structural part of any bridge vested in or under the jurisdiction of the Corporation without the consent in writing of the surveyor to the corporation which shall not be unreasonably withheld :
- (4) All works shall be executed by the Company so as not (so far as is reasonably practicable) to stop impede or interfere with the traffic on any street or bridge vested in or under the jurisdiction of the corporation or on the approaches to any such bridge and the Company shall not break up at any one time a greater length than one hundred yards of the following streets or parts of streets viz. Duke Street High Street New Street New London Road (from its junction with High Street to the iron bridge over the River Cann) Moulsham Street Baddow

A.D. 1914.

Road (from its junction with Moulsham Street to its junction with Goldlay Road) and Springfield Road (from its junction with High Street to the Horse Pond Bridge) or a greater length than two hundred yards of any other street :

- (5) Where any mains or pipes of the Company (other than service pipes) are to be laid or relaid beneath the surface of the roadway of any street or bridge vested in or under the jurisdiction of the corporation the same shall be laid or relaid wherever practicable at such a depth that not less than two feet shall intervene between the surface of such roadway and the upper surface of such mains or pipes Provided that this subsection shall not apply to the laying down of any mains or pipes beneath the surface of the footway of any street :
- (6) If any difference shall arise between the corporation and the Company touching the provisions of this section such difference shall be settled by an arbitrator to be agreed upon between the corporation and the Company or failing agreement to be appointed on the application of either party after notice to the other by the President of the Institution of Civil Engineers and subject as aforesaid the Arbitration Act 1889 or any statutory modification thereof shall apply to the arbitration.

For protec-
tion of Essex
County
Council.

58. For the protection of the county council of the administrative county of Essex (in this section called "the county council") the following provisions shall unless otherwise agreed in writing between the Company and the county council apply and have effect within the limits of supply except the borough and parish of Chelmsford and the parishes of Springfield Broomfield and Great Baddow (that is to say):—

- (1) In the case of any trunk mains to be laid down by the Company under the powers of this Act the Company shall not permit any trench made by them in any main road vested in and maintainable by the county council to be open for a greater consecutive distance than four hundred yards if in such length of four hundred yards there is not room throughout for two carts to pass one another and in the case of any other main to be laid down in any such road under

the powers of this Act there shall not in like circumstances be more than two hundred consecutive yards in length of trench open at any one time and the Company shall if and when required by the county council or their surveyor provide to the satisfaction of the county council for the regulation of traffic while any trench referred to in this subsection shall remain open:

- (2) In approving the plan to be delivered to the county council under section 9 of the Gasworks Clauses Act 1847 the county council may require that all mains and pipes of the Company shall wherever practicable be laid in or at the side of the road and if any main or pipe of the Company shall be laid below the surface of the roadway of any main road at a depth of less than two feet the county council shall not be liable for or in respect of any damage or injury which may be caused to such main or pipe by the use by the county council of any steam or other roller for the repair of any such road or of any traction engine belonging to the county council provided that such roller or engine does not exceed twelve tons in weight:
- (3) In the case of any main or pipe which it is reasonably necessary to lay otherwise than in the roadway over any county or main road bridge vested in the county council the same shall be carried on the structure of any such bridge in such manner as the county council may in writing under the hand of their surveyor reasonably direct and except as aforesaid the Company shall not interfere with the structural part of any county or main road bridge without the consent in writing of the surveyor of the county council which consent shall not be unreasonably withheld:
- (4) The provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes shall (subject to the provisions of this section) in their application to the laying of any pipe in such main road county or main road bridge and the roadway over and approaches to such bridge be read and construed as if the notice required by

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section 8 of that Act was not less than seven clear days instead of three clear days:

- (5) The exercise of any of the powers of the Company within the aforesaid limits shall not interfere with prejudice or affect the right of the county council at any time to alter the level of or deviate or improve in any manner they think fit any main road in or along which any mains or pipes of the Company shall have been laid and the Company shall on receiving notice in writing under the hand of the clerk or surveyor of the county council so to do alter with all reasonable dispatch the position of any such mains pipes or works in the manner and to the extent prescribed by such notice or as in case of difference shall be determined by arbitration in the manner hereinafter prescribed and the county council shall repay to the Company the expenses reasonably incurred by the Company in effecting any such alteration:
- (6) The exercise of any powers of the Company under this Act within the limits aforesaid shall not prejudice or affect the right of the county council at any time to remove alter rebuild widen or repair any county or main road bridge or the approaches to any such bridge or the roadway over the same in over or attached to which any mains pipes or works of the Company are carried in the same manner as the county council might have removed altered rebuilt widened or repaired such bridge roadway or the approaches if this Act had not been passed and such mains pipes or works had not been so laid or attached and the county council shall not be required to repay to the Company any expense to which the Company may be put by reason or in consequence of any such removal alteration rebuilding widening or reparation but the county council shall take all reasonable precautions to prevent injury to the works of the Company and shall pay compensation for any loss which the Company may sustain by reason of any such injury In the event of any such bridge roadway or approaches being removed altered rebuilt widened or repaired as aforesaid the Company shall

at their own cost in all things alter the position of any such mains or pipes carried in over or attached to such bridge or approaches as aforesaid in such manner as the county council or their surveyor may reasonably direct. Provided that during any such removal alteration rebuilding widening or reparation the county council shall afford to the Company all reasonable facilities for temporarily carrying such mains pipes and works across any stream or river so as not to interrupt the continuous supply of gas or to diminish the pressure of such supply through such mains or pipes and the Company may carry such mains pipes and works accordingly :

- (7) If the Company shall after reasonable notice from the county council under the hand of their surveyor neglect to do or complete any work or act required by subsections (4) and (5) of this section to be done by the Company then and in any such case the county council may do such work or act themselves under the superintendence (if given) of the Company completing the same with all reasonable expedition and in a proper and workmanlike manner and causing as little damage or inconvenience to the Company as circumstances admit and the Company shall repay to the county council the reasonable cost of doing any such work or act :
- (8) The county council shall not execute any works under this section or enforce any of the provisions of this section so that the supply of gas by the Company shall be interrupted and if the county council so interrupt the supply of gas they shall repay to the Company any loss damages or expenses to which the Company may thereby be put or become subject :
- (9) If any difference at any time arises between the county council and the Company touching this section or anything to be done or not to be done thereunder such difference shall be settled by an arbitrator to be agreed upon between them or failing agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of

A.D. 1914.
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the Arbitration Act 1889 shall apply to any such reference to arbitration as aforesaid.

For protec-
tion of Great
Eastern
Railway
Company.

59. Notwithstanding anything contained in this Act or any Act incorporated with this Act the following provisions for the protection of the Great Eastern Railway Company (hereinafter called "the railway company") shall unless otherwise agreed in writing between the parties be in force and have effect and be binding on the Company:—

(1) In laying down and in executing any works in connection with the laying down or the repair and renewal of any mains pipes or other works which the Company may by this Act be authorised to lay down and execute upon across over under or in any way affecting the railways lands or property belonging to the railway company or the bridges approaches viaducts stations or other works or any level crossings of or repairable by the railway company the same shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the railway company and except in the case of emergency only according to plans and sections to be previously submitted to and reasonably approved by him and in all things by and at the expense of the Company who shall also restore and make good the roads over any such bridges level crossings and approaches which the railway company is or may be liable to maintain and which may be disturbed or interfered with by or owing to any operations of the Company Provided that if such principal engineer shall not approve or disapprove any plans or sections so submitted to him within fourteen days after the same are delivered or shall refuse or neglect to superintend the work the Company may proceed with the same without the approval of the said plans or sections and without the superintendence of the said principal engineer:

(2) All such works matters and things shall be constructed executed and done so as not to cause any injury to such railways bridges level crossings approaches viaducts stations works lands or property or interruption to the passage or conduct of the traffic over

such railways and if any injury or interruption shall arise from or be in any way owing to any of the acts operations matters and things aforesaid or the bursting leakage or failure of any such mains pipes or works under or near to any such bridge level crossing or other property the Company shall make compensation in respect thereof to the railway company and the amount of such compensation in default of agreement shall be determined by arbitration in manner hereinafter provided:

- (3) Any difference which may arise between the railway company and the Company under the provisions of this section shall be settled by arbitration by an engineer to be appointed by the President of the Institution of Civil Engineers on the application of the railway company and the Company or of either of them after notice to the other and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to such arbitration:
- (4) The Company shall not without the previous consent in writing of the railway company exercise the powers of the section of this Act of which the marginal note is "Power to lay pipes in private streets" with respect to any street laid out but not dedicated to public use which is the property of the railway company.

60.—(1) The standard price to be charged by the Company for gas supplied by them by ordinary meter within the borough and parish of Chelmsford and the parishes of Springfield Broomfield and Great Baddow (in this Act called "the inner area") shall be three shillings and ninepence per one thousand cubic feet and such price is in this Act referred to as "the standard price":

Dividend
dependent
on price
charged.

Provided that the Company may increase or reduce the price charged by them for gas above or below the standard price subject to a reduction or increase in the dividend payable by the Company on the ordinary stock as follows:—

In respect of any year during any part of which the price charged by the Company for gas supplied by them within the inner area shall have been one penny or part of a penny above the standard price the dividend payable by the Company shall in respect of each penny or part

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of a penny by which the standard price shall have been so increased be reduced below the standard rate of dividend by two shillings and sixpence on every one hundred pounds of ordinary stock and so in proportion for any fraction of one hundred pounds ;

And in respect of any year during the whole of which the price charged by the Company for gas supplied by them within the inner area shall have been one penny or more below the standard price the dividend payable by the Company may in respect of each penny by which the standard price shall have been so reduced be increased above the standard rate of dividend by two shillings and sixpence on every one hundred pounds of ordinary stock and so in proportion for any fraction of one hundred pounds.

(2) The Company may charge for gas supplied by them within the parishes other than the parishes mentioned in subsection (1) of this section (in this Act called "the outer area") any price exceeding by not more than ninepence per thousand cubic feet the price for the time being charged by them within the inner area.

(3) Notwithstanding anything in this section contained the Company may at any time charge in any part or parts of the outer area a price or prices lower than the price or prices charged by them in any other part or parts of the outer area but so that such lower price or prices shall not be less than the price for the time being charged by them within the inner area.

(4) If in any year the dividend payable on the ordinary stock shall comprise a fractional amount less than one quarter per centum the directors of the Company may defer the payment of such fractional amount until the payment of the next or some succeeding dividends and shall in their discretion either add such fractional amount to and pay the same with such succeeding dividends accordingly or add the same to the reserve fund.

Charge for
gas supplied
by means of
prepayment
meters.

61.—(1) The Company may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to private consumers within the limits of supply through any other kind of meter or by any other method of supply.

(2) The charge for the hire of any prepayment meter and fittings to be used therewith shall be a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum charge shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking stove. A.D. 1914.

(3) The charge for the hire of any prepayment meter without fittings shall be a sum of money calculated according to the quantity of gas supplied through the prepayment meter and the maximum charge shall be at the rate of sixpence per one thousand cubic feet supplied in manner aforesaid or at the rate of ten per centum per annum on the cost of the meter whichever shall be the higher.

(4) The said charges shall include the providing letting fixing repairing and maintenance of the meters and fittings or of the meters (as the case may be) and the cost of collection and other costs incurred by the Company in connection therewith.

(5) For the purpose of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

62. The prescribed number of candles shall be not less than fourteen. Quality of gas.

63. For the purposes of the Gasworks Clauses Act 1871 the prescribed testing place shall be the testing place which has been provided by the old company on the lands described in Part I. of the schedule to this Act or a testing place to be provided by the Company on any of the lands described in the said schedule. Testing place.

64.—(1) The quality of the gas supplied by the Company shall with respect to its illuminating power be such as to produce at the testing place when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fourteen sperm candles of six to the pound each consuming one hundred and twenty grains of sperm per hour and shall be in all respects in accordance with the provisions of the Gasworks Clauses Act 1871. Testing quality.

A.D. 1914.

(2) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan Argand No. 2 the photometer shall be the bar photometer or the table photometer the standard light shall be that supplied by Harcourt's ten-candle pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light Provided that the Board of Trade may on the application of the Company or the local authority approve the use of any other burner photometer or standard light which may appear to the Board to be equally or more suitable for the testing.

(3) The Company shall within three months after the passing of this Act provide all the apparatus required by this Act for the testing of gas and shall at all times keep the same in proper order and repair.

Pressure.

65.—(1) All gas supplied by the Company to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than eight-tenths of one inch in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Act subject to the terms of his appointment at the testing place or at any public lamp as and when he thinks fit test the pressure at which the gas is supplied The Company shall afford to the examiner all reasonable facilities for making the test.

Saving as to penalties.

66. No penalty shall be incurred by the Company for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was produced by any circumstance beyond the control of the Company Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company.

As to construction and placing of pipes &c. between mains and meters.

67. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

(1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer on his own premises either in

the first instance or on the occasion of any renewal between the Company's mains and the meter so far as such pipes are intended to be covered over: A.D. 1914.
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- (2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time:
- (3) The specification shall be published twice in some newspaper circulating within the limits of supply and a copy of such specification shall be kept exhibited in the office of the Company:
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building:
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipes shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with:
- (6) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

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Power to
supply gas
fittings &c.

68.—(1) The Company may purchase sell let for hire fix repair and remove but shall not manufacture engines stoves ranges pipes and other gas fittings for lighting motive heating and ventilating cooking or any other purposes and may provide all materials and work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or proceedings in bankruptcy against the persons in whose possession the same may be and all fittings let for hire as aforesaid shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and removable by the Company provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Company as the actual owners thereof.

Consumers
to give
notice to
Company
before
removing.

69. At least twenty-four hours' notice shall be given to the Company by every gas consumer either personally at the office of the Company or in writing before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur Notice of the effect of this enactment shall be endorsed upon every demand note for gas charges payable to the Company.

Power to
refuse supply
to persons in
debt for
other
premises.

70. If a person requiring a supply of gas from the Company has previously quitted premises at which gas was supplied to him by the Company without paying all gas charges and meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same.

Notice to
discontinue
supply.

71. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company or

be given by the consumer personally at the office of the A.D. 1914.
Company.

72. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the Company.

Period of
error in
defective
gas meters.

73. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator together with an effective non-return valve and shall at all times and at his own expense keep such anti-fluctuator and valve in proper repair and in default of his so using or keeping such anti-fluctuator and valve in proper repair the Company may cease to supply gas to such consumer The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator and valve at all reasonable times such taking of removal testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator and valve be found in proper order but otherwise at the expense of the consumer.

Anti-fluc-
tuators for
gas engines.

74. The power to enter premises and to remove pipes meters fittings or apparatus conferred upon the Company by section 22 of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering into occupation of any premises previously supplied with gas by the Company shall not require to take a supply of gas from the Company or to hire from the Company all or any of the pipes meters fittings or apparatus belonging to the Company and let by them on hire to any former occupier of such premises.

Power to
enter pre-
mises and
remove
fittings.

75. In any case in which the Company are by virtue of any enactment relating to their gas undertaking authorised to cut off and discontinue the supply of gas to any premises in consequence of any default on the part of the occupier of the

As to mode
of cutting off
supplies

A.D. 1914. — premises it shall be lawful for the Company without prejudice to any other remedy which may be lawfully available to them to disconnect at the meter the service pipe (whether belonging to the consumer or to the Company) and any person who shall reconnect such service pipe with the meter without the consent of the Company shall be deemed to commit an offence within the meaning of section 18 of the Gasworks Clauses Act 1847. Provided that if and so soon as the matter complained of shall have been remedied nothing in this section shall prejudice or interfere with any rights vested in any person by virtue of section 11 of the Gasworks Clauses Act 1871.

Supply of gas where consumer has separate supply.

76. Notwithstanding anything contained in the Gasworks Clauses Act 1871 or any other Act a person shall not be entitled to demand or continue to receive from the Company a supply of gas for any premises for which he has at the same time a supply of gas from any installation other than that of the Company or a supply of electricity unless he shall have agreed to pay to the Company such minimum annual sum as will give to them a reasonable return on the capital expenditure and will cover charges incurred by them in order to meet the possible maximum demand for those premises and the sum to be so paid shall be determined in default of agreement by arbitration in manner provided by the Arbitration Act 1889.

Company may contract with local authority &c. for supply in bulk.

77. The Company may contract with any local authority company or person authorised to supply gas under parliamentary powers in any district adjacent to the limits of supply for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as may be agreed upon but nothing in this section shall authorise the Company to lay any mains or service pipes or to interfere with any street beyond the limits of supply.

MISCELLANEOUS.

Application of moneys.

78. All moneys raised under this Act including premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of stock under the provisions of this Act shall not be considered as part of the capital of the Company entitled to dividend.

79. If any money is payable to a stockholder or mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

A.D. 1914.
Receipt in
case of per-
sons not sui
juris.

80. It shall be lawful for the Company to make superannuation and other allowances and to pay pensions to any officers servants or employees of the Company who may be temporarily or permanently disabled by sickness infirmity or age and for that purpose to apply the funds and revenues of the Company.

Power to
make super-
annuation
and other
allowances.

81.—(1) The directors of the Company may with the sanction of a majority of the shareholders present and voting at an extraordinary general meeting of the Company prepare put in force and from time to time modify or alter a scheme enabling the workmen servants and employees of the Company (hereinafter called “employees”) or any class or classes of such employees as may be defined in any such scheme to participate in the profits of the undertaking as part of the terms of remuneration for the services of any such employee.

Profit
sharing.

(2) Any agreement as to service with any employee in pursuance of any such scheme may be entered into with any employee above the age of sixteen and shall be in writing and may be made on the part of the Company under the hands of any two directors of the Company or under the hand of the secretary of the Company or of any person from time to time appointed in that behalf by resolution of the board of directors of the Company.

82. If any person is required by the Company to give to them security for any supply of gas or for the payment of the price or rent of a meter and such security is made by way of deposit the Company shall pay interest at the rate of four pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands as security.

Company to
pay interest
on money
deposited as
security for
gas meter
&c.

83. The Company may acquire take and use any leave licence or authority to work use exercise and put in practice any invention under letters patent made or to be made granting any right or privilege of working using exercising or vending any invention in relation to the production manufacture utilisation or distribution of gas or materials used in or resulting

Power to take
licences for
use of
patents.

A.D. 1914. from the manufacture of gas or any residual products thereof but not so as to acquire any exclusive right to the working using exercising or putting in practice of any such invention.

Dwelling-houses for workmen.

84. The Company may purchase or take on lease houses cottages and buildings for persons in their employ and offices showrooms and other buildings for the purposes of the undertaking and may erect fit up maintain and let any of such buildings upon any lands for the time being belonging or leased to the Company.

Power for directors to determine remuneration of secretary.

85. In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 to 1889 they may from time to time determine the remuneration of the secretary of the Company.

Recovery of demands.

86. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Authentication of notices.

87. Any notice to be served by the Company demanding payment of any charge in respect of a supply of gas or of fittings shall be sufficiently authenticated by the name of the secretary or of a collector or other officer of the Company for the time being authorised in writing by the directors being affixed thereto in print or by stamp.

Recovery of penalties &c.

88. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Repeal of Order of 1874 and Order of 1885.

89. Subject to the provisions of this Act the Order of 1874 and so much of the Gas and Water Orders Confirmation Act 1874 as relates thereto and the Order of 1885 and so much of the Gas and Water Orders Confirmation (No. 2) Act 1885 as relates thereto are hereby repealed.

90. The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be recoverable summarily.

A.D. 1914.
Copy of
Act to be
registered.

There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies (Consolidation) Act 1908 on registration of any document other than a memorandum or the abstract required to be filed with the registrar by a receiver or manager or the statement required to be sent to the registrar by the liquidator in a winding up in England.

91.—(1) If the mayor aldermen and burgesses of the borough of Chelmsford (in this section called “the corporation”) shall introduce in the next session of Parliament a Bill for an Act to empower them to purchase the undertaking of the Company and shall bonâ fide promote the same the Company shall not oppose such Bill except in so far as they may deem necessary in order to secure the insertion therein of provisions to protect their interests with respect to such purchase and for that purpose the Company shall be at liberty to petition either or both Houses of Parliament and to appear on such petition by counsel agents and witnesses if they think fit.

Provision as
to purchase
of under-
taking by
corporation
of Chelms-
ford.

(2) If the corporation obtain an Act authorising such purchase they shall give notice of their intention to purchase within six months after the passing of such Act and thereupon the Company shall sell and transfer and the corporation shall purchase the undertaking of the Company subject to all their then existing debts obligations and liabilities other than mortgage or debenture debts.

(3) Such sale and purchase shall be for such price or consideration and on and subject to such terms and conditions as may be agreed upon between the Company and the corporation or as failing such agreement shall be determined by arbitration in accordance with the provisions of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than

A.D. 1914. — by agreement and in the construction of the said provisions the expression “the promoters of the undertaking” shall mean the corporation and the expression “lands” shall mean the undertaking of the Company. Provided that for the purposes of such arbitration the sale and purchase shall be deemed to be a sale and purchase by compulsion and not by agreement.

(4) In addition to the amount to be paid by the corporation to the Company under the foregoing provisions of this section the corporation shall pay to the Company the costs charges and expenses of the Company of and incidental to (A) the obtaining of this Act and (B) the watching or procuring of any amendment of the Bill to be introduced by the corporation (the before-mentioned costs charges and expenses to be taxed as between solicitor and client) and the sum of two hundred pounds in respect of the transfer of the undertaking and the winding up of the Company.

(5) The corporation shall also pay compensation to the directors of the Company and to any officers and servants (except weekly servants of less than ten years' service) in the regular employment of the Company who shall not be retained by the corporation in the same or similar office or employment and at the salary and on the terms and conditions in at and on which they respectively were employed by the Company on the first day of March one thousand nine hundred and fourteen in respect of any loss of office or diminution of salary or income by reason of the transfer of the undertaking of the Company to the corporation the amount of such compensation in default of agreement to be determined by arbitration as aforesaid. Provided that the engineer and manager and secretary and any officer or servant who has been in the employment of the Company for ten years or upwards shall not lose his right to compensation as aforesaid by reason of his refusal to accept employment under the corporation nor shall any such refusal be taken into account as a ground for reducing the amount of compensation to be paid.

(6) The Company shall not without the previous consent in writing of the corporation either enter into any contract agreement or obligation (except such as may be necessary for carrying on the undertaking in the ordinary course of business) or (save as hereinafter provided) raise any capital in pursuance of this Act before the thirtieth day of November one thousand nine hundred and fourteen nor thereafter if the corporation

shall then have published notice of their intention to introduce such Bill as aforesaid into Parliament and shall subsequently introduce such Bill unless such Bill shall have been withdrawn or rejected Provided that the Company shall be entitled at any time after the passing of this Act to raise by borrowing such sum or sums as may be necessary for carrying on the undertaking in the ordinary course of business. A.D. 1914

(7) For the purposes of this section the expression "the undertaking of the Company" includes all the works engines mains pipes and machinery lands and buildings plant fixed and movable and all other the real and personal property assets and effects of whatever nature and all the rights powers and privileges vested in or belonging to or had or enjoyed by the Company at the date of transfer of the undertaking of the Company to the corporation except the books and papers relating exclusively to the shareholders and constitution of the Company Provided that the Company shall be entitled to retain or shall be paid by the corporation in addition to the price or consideration for the transfer of the undertaking such a sum as shall be necessary to enable the Company to pay dividends at the authorised rates from the date of the last payment of such dividends to the date of the transfer of the undertaking to the Corporation.

92. All the costs charges and expenses of and incident to the preparing and applying for obtaining and passing of this Act and otherwise in relation thereto shall be paid by the Company and may in whole or in part be charged against revenue. Costs of Act.

A.D. 1914.

The SCHEDULE referred to in the foregoing Act.

LANDS FOR GASWORKS.

PART I.

All those pieces or parcels of land situate in the parish and borough of Chelmsford in the county of Essex occupied in whole or in part by the existing gasworks containing together by admeasurement two acres one rood and six perches or thereabouts and bounded on or towards the north-east by lands belonging or reputed to belong to the Chelmer and Blackwater Navigation Company on or towards the south-east partly by Wharf Road partly by a feeder belonging or reputed to belong to the Chelmer and Blackwater Navigation Company and partly by land forming part of the enclosure numbered 173 on the $25\frac{1}{10}$ Ordnance map of the county of Essex (edition 1897) Sheet LII. 8 known as Floodgate Mead belonging or reputed to belong to the executors of the late Henry Marriage on or towards the south-west by the aforesaid enclosure numbered 173 and on or towards the north-west partly by the aforesaid feeder and partly by land belonging or reputed to belong to Messrs. Wray and Fuller and partly by land belonging or reputed to belong to Frederick James Underwood.

PART II.

All those pieces or parcels of land situate in the parish and borough of Chelmsford in the county of Essex containing together by admeasurement four acres thirty-four perches or thereabouts bounded on or towards the north-west partly by land belonging or reputed to belong to the Chelmer and Blackwater Navigation Company and partly by the lands on which the existing gasworks are erected on or towards the north-east partly by land belonging or reputed to belong to Charles Arthur Brown partly by Wharf Road partly by land belonging or reputed to belong to Messrs. Glover and Hobson partly by land belonging or reputed to belong to Fred Luckin Smith and partly by the Chelmer and Blackwater Canal and on or towards the south-west and south-east by an imaginary line drawn from the south-western corner of the lands on which the existing gasworks are erected in continuation of the south-western boundary of such last-mentioned lands for a distance of 720 feet or thereabouts in a south-easterly direction and thence for a distance of 268 feet or thereabouts in a north-easterly direction until it meets the Chelmer and Blackwater Canal.

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